

GOVERNMENT OF KERALA

Abstract

Local Self Government Department — Commercial building permits in areas situated near water bodies — provisional setback and environmental-clearance scrutiny directions — orders issued.

LOCAL SELF GOVERNMENT (TOWN PLANNING) DEPARTMENT

G.O. No. 22/2021/LSGD

Dated, Thiruvananthapuram, 12th August, 2021

Read:

1. Kerala Building Rules, 2019.
2. Department Circular No. TP/ENV/2019/44 dated 18th November, 2019.
3. Report of the State-Level Committee on Development Permissions near Water Bodies, 2021.
4. Letter No. LSGD/TP/ENV/2021/76 dated 20th July, 2021 from the Director of Town and Country Planning.

ORDER

The Government have examined the difficulties reported by Local Self Government Institutions in processing applications for commercial building permits in areas situated near lakes, rivers, backwaters, wetlands and other water bodies.

2. It has been brought to the notice of Government that Local Self Government Institutions require interim guidance regarding the measurement of setback, classification of commercial projects and scrutiny of environmental documents until a consolidated review of the applicable building-permit procedure is completed.
3. Government are, therefore, pleased to issue the following directions for the guidance of Local Self Government Institutions in the processing of commercial building-permit applications covered by this Order.

Applicability

4. This Order shall apply to applications for commercial buildings situated within 500 metres of the nearest identifiable boundary of a lake, river, backwater, wetland, reservoir, canal or other notified water body.
5. For the purpose of preliminary scrutiny, the distance shall be measured from the nearest point of the proposed building footprint to the nearest identifiable boundary of the

relevant water body as shown in the site plan or other record accepted by the Local Self Government Institution.

6. Where the boundary of the water body or the distance shown in the application is disputed, the Local Self Government Institution may call for a certified survey, revenue record, technical report or other supporting document before taking a final decision.

Setback requirement

7. Every new commercial building to which this Order applies shall ordinarily maintain a minimum unobstructed setback of 5 metres from the nearest identifiable boundary of the relevant water body.
8. The setback shall be measured horizontally from the nearest point of the proposed permanent structure to the boundary identified in the approved site plan.
9. A greater setback shall be maintained where such greater distance is prescribed by an approved town-planning scheme, environmental direction, flood-management requirement, coastal-protection provision or condition imposed by a competent authority.
10. The site plan accompanying the application shall indicate the water-body boundary, proposed building footprint, point of measurement and calculated setback.

Classification of commercial projects

11. For the purpose of environmental-document scrutiny under this Order, a commercial project having a proposed built-up area of 5,000 square metres or more shall be treated as a large commercial project.
12. Where a project is proposed in separate blocks or phases, the Local Self Government Institution may examine the common ownership, site, access, utilities and development purpose to determine whether the applications form part of one development proposal.
13. Applications for commercial projects having a proposed built-up area below 5,000 square metres may be processed under the ordinary building-permit procedure, subject to any specific requirement imposed by the Kerala Building Rules, an environmental authority, a town-planning scheme or another competent authority.

Environmental documents

14. In the case of a large commercial project situated within 500 metres of a water body, the applicant shall furnish details of any environmental permission, clearance, recommendation or application submitted to a competent authority.
15. The Local Self Government Institution shall examine the documents furnished by the applicant and may seek clarification where the project location, proposed area, land use or environmental impact is unclear.
16. An application acknowledgement or proposal receipt may be kept on the permit file as evidence of the application submitted to the environmental authority. The Local Self Government Institution may proceed with further technical scrutiny while awaiting the

decision of that authority, subject to the Kerala Building Rules and directions of the competent authority.

17. Where a competent environmental authority has specifically directed that prior clearance is required before construction or before issue of the building permit, the Local Self Government Institution shall comply with that direction.
18. The permit-issuing officer shall record the environmental documents examined and any conditions communicated by the competent authority.

Permit-file records

19. The permit file for a commercial project covered by this Order shall contain, as applicable

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- (i) the application and site plan;
- (ii) the proposed built-up area and intended use;
- (iii) the measured distance from the relevant water body;
- (iv) the setback calculation;
- (v) environmental permissions, recommendations or correspondence;
- (vi) applicable no-objection certificates; and
- (vii) the reasons recorded by the permit-issuing officer.

20. The applicant shall be informed in writing of any material deficiency noticed during scrutiny. Submission of an undertaking by the applicant shall not remove a requirement imposed by a competent authority.

Responsibility of Local Self Government Institutions

21. The Secretary of the Local Self Government Institution shall ensure that applications covered by this Order are scrutinised in accordance with the Kerala Building Rules and the directions contained herein.
22. Where the facts relating to the water-body boundary, project area or environmental requirement are uncertain, the Secretary may seek the opinion of the Town and Country Planning Department or another competent department.
23. The issue of a building permit shall not be construed as permission to encroach upon a water body, obstruct natural drainage or violate any condition imposed by another competent authority.

Review of the instructions

24. The Director of Town and Country Planning shall review the implementation of these directions and submit recommendations to Government for issuing consolidated instructions on commercial building permits in ecologically sensitive areas.
25. Until further orders, Local Self Government Institutions may follow this Order for preliminary scrutiny, subject to the provisions of the Kerala Building Rules and any subsequent Government Order, notification, circular or direction issued by a competent authority.

By order

26. This Order shall be circulated to all Local Self Government Institutions for information and necessary action.

By order of the Governor,

[Signature]

Additional Chief Secretary to Government

To

The Principal Accountant General (Audit), Kerala, Thiruvananthapuram.

The Director of Urban Affairs, Thiruvananthapuram.

The Director of Town and Country Planning, Thiruvananthapuram.

All Municipal Corporations / Municipalities / Grama Panchayats.

The Environment Department.

The Law Department.

The Information and Public Relations Department.

Stock File / Office Copy.

Citation anchors for the prototype

- G.O. No. 22/2021/LSGD, paras 4–6 — geographical applicability and distance measurement.
- G.O. No. 22/2021/LSGD, paras 7–10 — earlier 5-metre setback requirement.
- G.O. No. 22/2021/LSGD, paras 11–13 — earlier 5,000-square-metre classification threshold.
- G.O. No. 22/2021/LSGD, paras 14–18 — environmental documents and preliminary scrutiny.
- G.O. No. 22/2021/LSGD, paras 19–23 — permit-file records and officer responsibilities.
- G.O. No. 22/2021/LSGD, paras 24–26 — review and continuation of directions.